

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008573

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: HOMETAP HEI FUND II
SPV I, A DELAWARE STATUTORY TRUST

vs.

DEFENDANT: CANDANCE CAIN
O'DENVER, ET AL

NATURE OF PROCEEDINGS: DEMURRER

RULING

Defendant Stefano Schiavi filed a Demurrer on July 30, 2026, alleging that Plaintiff Hometap Fund, ending business that provides Home Equity Investments ("HEI") and other financing products to property owners, failed to properly identify the proper legal owner of 377 Ocean Parkway, Bolinas, California 94924. The pleading is unopposed.

Hearing on Defendant's demurrer is CONTINUED to October 9, 2026, at 1:30 p.m.

If the Demurrer is unopposed, it will likely be sustained. The parties must meet and confer on whether an amended complaint identifying the proper property owner will resolve the issues.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008540

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: PHILLIS HAMILTON-
HOLLAND, BY AND THROUGH HER
SUCCESSOR-IN-INTEREST, TRACI
HAMILTON, ET AL

vs.

DEFENDANT: KENTFIELD AND SAN
FRANCISCO SPECIALTY HOSPITAL, INC

NATURE OF PROCEEDINGS: MOTION – RELIEVE COUNSEL

RULING

Counsel Justin Vitug, Esq.’s motion to be relieved as counsel, citing a breakdown in communications with his client, the named Plaintiff, is on calendar. No response from Plaintiff has been received. Defendant has not yet been served. Appearances are **REQUIRED** .

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

***IT IS ORDERED* Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court’s website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.**

***FURTHER ORDERED* Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party’s connection is inadequate, the Court may proceed in that party’s absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).**